

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF MISSISSIPPI
OXFORD DIVISION**

MATTHEW OLIVER REARDON

PLAINTIFF

VS.

CIVIL ACTION NO.: 3:22-CV-00050-SA-JMV

STATE OF MISSISSIPPI, ET AL.

DEFENDANTS

**COUNTY DEFENDANTS' RESPONSE IN OPPOSITION TO PLAINTIFF'S SWORN
DECLARATION AND REQUEST FOR EMERGENCY INJUNCTIVE RELIEF
WITH STIPULATED ORDER FOR PROTECTION**

Defendants Lafayette County, Mississippi ("the County"); Lafayette County Sheriff's Department¹; and Joseph B. East, individually and in his official capacity (collectively, "County Defendants") submit this Response in Opposition to Plaintiff's Sworn Declaration and Request for Emergency Injunctive Relief with Stipulated Order for Protection pursuant to Local Uniform Civil Rule 7.4(b) and Federal Rule of Civil Procedure 12(f), and would show the following:

Plaintiff filed this lawsuit on April 6, 2022, alleging a laundry list of vague federal and state law causes of action against twenty-eight (28) defendants and seeking \$2,500,000 in compensatory damages and \$25,000,000 in punitive damages. Plaintiff filed an Amended Complaint on July 19, 2022. Doc. 30. On January 11, 2023, County Defendants filed a Motion for Judgment on the Pleadings pursuant to Federal Rule of Civil Procedure 12(c). Doc. 46. The Court entered an Amended Order Staying the Case (Doc. 49)² on January 13, 2023 pursuant to

¹ Although the Amended Complaint names both Lafayette County, Mississippi and Lafayette County Sheriff's Department as Defendants, it is well-established that a sheriff's department simply is a department within a county and cannot be sued as a separate entity. *See Brown v. Thompson*, 927 So. 2d 733 (Miss. 2006) (holding "the [Bolivar County] Sheriff's Department does not enjoy a separate legal existence, apart from Bolivar County..."). Thus, Lafayette County, Mississippi and Lafayette County Sheriff's Department are the same entity for purposes of this lawsuit, and any reference to "the County" herein shall include both Lafayette County, Mississippi and Lafayette County Sheriff's Department.

² It is worth noting that Plaintiff's Declaration is not properly before the Court because Plaintiff filed the Declaration while the Court's Amended Order Staying the Case (Doc. 49) was still in effect.

Local Uniform Rule 16(b)(3)(B) following Co-Defendant State of Mississippi's immunity-based motion to dismiss.³

On February 15, 2023, Plaintiff filed what appears to be a separate "motion" styled as a "Sworn Declaration and Request for Emergency Injunctive Relief with Stipulated Order for Protection" (the "Declaration"). Doc. 60. Plaintiff's Declaration should be denied (or struck under Federal Rule of Civil Procedure 12(f)) because the assertions contained in Plaintiff's Declaration are based on discrete events that allegedly occurred after Plaintiff filed this lawsuit, and the Declaration improperly seeks injunctive relief upon grounds that are entirely separate from the allegations in Plaintiff's Amended Complaint.⁴ Further, the Declaration is replete with disjointed factual allegations against several individuals and entities who are not even parties to this lawsuit. Docs. 59, 60. Plaintiff's Declaration is essentially a separate complaint seeking to appeal a banishment order issued against him in 2017 in a separate case, which cannot form the basis for

County Defendants respond to Plaintiff's Declaration solely out of an abundance of caution and urge that they are by no means required to respond to the Declaration in light of the Amended Order Staying the Case (Doc. 49). *See, e.g., Keyes v. Speed*, 2007 WL 1577790, at *1 n.3 (S.D. Miss. May 29, 2007) (refusing to consider plaintiff's partial motion for summary judgment filed while the case was stayed pursuant to defendants' assertion of qualified immunity and holding the "court's order to stay the case because of immunity issues relieved the defendants of their obligation to respond to the motion.") (emphasis added).

³ On January 17, 2023, the Court granted the State of Mississippi's Motion to Dismiss on sovereign immunity grounds. Doc. 51. All Defendants have moved to dismiss the Amended Complaint. Plaintiff's response to County Defendants' motion was due on or before January 25, 2023. L.U.C.R. 7(b)(4). To date, Plaintiff has not responded to *any* of the Defendants' Motions, which in itself, is grounds for dismissal. *Hawkins v. Hollandale Sch. Dist.*, 4:21-cv-72-DMB-JMV, 2022 WL 3590338, at *1 (N.D. Miss. Aug. 22, 2022) ("A plaintiff abandons claims when it fails to address those claims or oppose a motion challenging those claims.") (quoting *Terry Black's Barbecue, L.L.C. v. State Auto Mut. Ins. Co.*, 22 F.4th 450, 459 (5th Cir. 2022)).

⁴ For instance, Plaintiff challenges the constitutionality of a restraining order issued against him in 2017 by Mayor Robyn Tannehill (*see* Doc. 30), even though the Amended Complaint in this case is based on Plaintiff's involuntary commitment for mental health services. Doc. 59. In the Declaration, Plaintiff improperly asks this Court to order "the release of Plaintiff from imprisonment that came as a result of flagrant constitutional rights violations, denial of due process, and retaliation/interference into the litigation ongoing in this court." Doc. 60. Plaintiff also asks the Court to issue a "cease and desist", to appoint Plaintiff with legal counsel, and to "declare the Banishment by Lafayette County to be unconstitutional." Doc. 59.

relief in this case. *See, e.g., Tustin v. Strawn*, No. 2:18-cv-0505, 2018 WL 5995655, at *3 (W.D. Penn. Nov. 15, 2018) (holding “it was not appropriate [for Plaintiff] to add entirely new claims by filing a ‘Declaration’” and advising “Plaintiff that to the extent he believes he has been subjected to violations unrelated to the claims of his amended complaint, he should file new separate complaints addressing each violation.”).

Accordingly, County Defendants respectfully request that the Court deny Plaintiff’s Sworn Declaration and Request for Emergency Injunctive Relief with Stipulated Order for Protection (Doc. 60), or alternatively, strike the Declaration as improper pursuant to Federal Rule of Civil Procedure 12(f).

Respectfully submitted,

PHELPS DUNBAR LLP

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ATTORNEYS FOR COUNTY DEFENDANTS

CERTIFICATE OF SERVICE

I, Marcellus D. Chamberlain, hereby certify on this date I electronically filed the foregoing *COUNTY DEFENDANTS' RESPONSE IN OPPOSITION TO PLAINTIFF'S SWORN DECLARATION AND REQUEST FOR EMERGENCY INJUNCTIVE RELIEF WITH STIPULATED ORDER FOR PROTECTION* with the Clerk of the Court using the CM/ECF system, which sent notification⁵ to the following recipients:

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This the 1st day of March, 2023.

/s/ Marcellus D. Chamberlain
Marcellus D. Chamberlain

⁵ On February 27, 2023, Plaintiff filed a "Notice of Change of Pro Se Address." Doc. 61. Because the Court rescinded Plaintiff's access to the electronic filing system based on Plaintiff's inability to access e-mails, County Defendants have sent a copy of this Response in Opposition to Plaintiff's Sworn Declaration and Request for Emergency Injunctive Relief with Stipulated Order for Protection to Plaintiff by U.S. certified mail, return receipt requested, at the following address:

Matthew Oliver Reardon (MDOC #210988)
East Mississippi Correctional Facility
10641 Highway 48 West
Meridian, MS 39307